

25SMCV05046 25SMCV05046

County: los-angeles

Division: Civil Law and Motion

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The is a motion to compel further by plaintiff. The case, though, has a twist. On its face, it is a discrimination/wrongful termination case. But there is a bit more. After plaintiff was terminated from work, she was offered a severance package with a release. According at least to the defense, the defense offered to pay her money to which she was otherwise not entitled in return for a broad release. Although at first she would not sign the contract, eventually she changed her mind and signed. The contract contained all of the statutory requirements. Plaintiff sued anyway, and defendants have pled the release.

The point of a release is to avoid just this sort of litigation. The court therefore, in its discretion, has elected to limit discovery only to issues that go to the validity of the release. Plaintiff claims she has done so, but defendants disagree. Plaintiff brings this motion, and defendants oppose.

Plaintiff asserts four bases for her motion. The first is that the release, she says, is designed to protect defendants from their own fraud and intentional misconduct, which is barred by Civil Code section 1668.

Plaintiff is wrong. That statute bars a release that protects against future misconduct; it is not meant to bar a release for past misconduct. Nothing in the release purports to protect defendants from any conduct that post-dates the contract.

Plaintiff also states that this goes to the MSJ. But the court does not see that and plaintiff

does not adequately explain it.

Plaintiff states that this goes to duress. The problem is that plaintiff misperceives the nature of the defense to a contract.

The fact that a party very much is in need of money does not constitute economic duress by the other party that would vitiate a contract unless the other party is responsible for the duress in an improper way. Plaintiff has not explained how the discovery at issue goes to that, other than potentially SI 5 and 6, discussed below.

Finally, plaintiff argues that this goes to the scope of the release. The court does not see how that is, and the release is pretty broadly written.

Defendants also state that the only thing remaining at issue are special interrogatories 5 and 6, and as to those the issue is moot because they served verified responses on August 24 that identified the responsive documents and produced them all.

That is enough for the court. The motion is DENIED. However, if in opposition to the MSJ, plaintiff has specific discovery that plaintiff wants to take and can establish how that discovery is reasonably likely to lead to the discovery of evidence that would rebut the motion, this is without prejudice to that.

The court also emphasizes that plaintiff's refusal to meet and confer over the phone is improper.

The Code of Civil Procedure states that such a conference is required. (CCP sec. 2016.040.) The refusal to do so here was not appropriate.